



February 11, 2026

ENGROSSED HOUSE BILL No. 1204

DIGEST OF HB 1204 (Updated February 9, 2026 11:20 am - DI 150)

Citations Affected: IC 14-8; IC 14-19.

Synopsis: Natural resource entrance fees. Allows counties that meet certain criteria to adopt an ordinance to impose a surcharge of not more than \$1 in addition to the fees charged by the department of natural resources (department) for entry into certain state parks and recreation areas. Provides that the surcharge may not be imposed on an annual state park pass holder. Requires the department to collect and to report and pay the surcharge to each county treasurer. Provides that the surcharge collected is to be used for certain purposes.

Effective: July 1, 2026.

Hall, Bartels, Patterson, Pierce M

(SENATE SPONSORS — KOCH, GLICK, LEISING, DEERY, YODER,
CHARBONNEAU, DONATO, HOLDMAN, MAXWELL)

January 5, 2026, read first time and referred to Committee on Natural Resources.
January 14, 2026, reported — Do Pass. Referred to Committee on Ways and Means pursuant to Rule 126.3.

January 27, 2026, reported — Do Pass.

January 29, 2026, read second time, amended, ordered engrossed.

January 30, 2026, engrossed.

February 2, 2026, read third time, passed. Yeas 72, nays 6.

SENATE ACTION

February 5, 2026, read first time and referred to Committee on Natural Resources.

February 10, 2026, amended, reported favorably — Do Pass; reassigned to Committee on Appropriations.

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Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

ENGROSSED HOUSE BILL No. 1204

A BILL FOR AN ACT to amend the Indiana Code concerning natural and cultural resources.

Be it enacted by the General Assembly of the State of Indiana:

- 1 SECTION 1. IC 14-8-2-87.9 IS ADDED TO THE INDIANA CODE
2 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
3 1, 2026]: **Sec. 87.9. "Fees", for purposes of IC 14-19-3-6, means**
4 **entrance or admission fees that are paid in a county upon or after**
5 **entering an Indiana state park or state recreation area located in**
6 **the county.**
- 7 SECTION 2. IC 14-8-2-225.6 IS ADDED TO THE INDIANA
8 CODE AS A **NEW** SECTION TO READ AS FOLLOWS
9 [EFFECTIVE JULY 1, 2026]: **Sec. 225.6. "Public safety", for**
10 **purposes of IC 14-19-3-6, has the meaning set forth in**
11 **IC 6-3.6-2-14.**
- 12 SECTION 3. IC 14-19-3-6 IS ADDED TO THE INDIANA CODE
13 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
14 1, 2026]: **Sec. 6. (a) The general assembly finds the following:**
15 **(1) Counties in which a significant amount of land is owned by**
16 **the state or federal government, or in which a reservoir is**
17 **located, experience a unique loss of tax revenue for use in**

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1 providing government services such as public safety and
2 maintaining the drinking water supply.

3 (2) A unique approach is required to ensure that the counties
4 receive additional revenue to pay for public safety and to
5 address reservoir water quality issues for those who use the
6 reservoir as both a source of drinking water and recreation.

7 (3) The additional revenue collected through a local ordinance
8 by a county benefits the health and welfare of the people and
9 is of public utility and benefit.

10 (4) The influx of visitors to the federal and state lands creates
11 additional financial costs for counties, including additional
12 burdens on law enforcement and infrastructure.

13 (b) This section applies to a county in which the department
14 collects an entrance fee for entry into a state park or state
15 recreation area.

16 (c) A county fiscal body may adopt an ordinance to impose a
17 surcharge on the fees paid in the county for entry into a state park
18 or state recreation area located in the county. A county fiscal body
19 that adopts an ordinance under this section shall notify the director
20 of the department. The department shall report the surcharge
21 collected under the ordinance on forms approved by the county
22 treasurer.

23 (d) The surcharge is equal to an amount of not more than one
24 dollar (\$1) in addition to the fees charged by the department for
25 entry into the state park or state recreation area. However, the
26 surcharge may not be imposed on a person who holds an annual
27 pass issued under section 5 of this chapter.

28 (e) The department shall:

29 (1) begin collecting the surcharge not later than sixty (60)
30 days after receiving notice under subsection (c) of the
31 adoption of an ordinance; and

32 (2) subject to subsection (f), pay the surcharge collected
33 during a month to the county treasurer not later than the end
34 of the following month.

35 (f) If:

36 (1) the state park or state recreation area is located in more
37 than one (1) county; and

38 (2) each county in which the state park or state recreation
39 area is located has passed an ordinance under subsection (c);

40 the department shall prorate the surcharge and pay a prorated
41 share to the county treasurer for each county in which the state
42 park or state recreation area is located.



1 (g) The surcharge collected by the department and paid to the
2 county treasurer must, as applicable, be used for one (1) or both of
3 the following in accordance with an ordinance adopted under
4 subsection (c):

5 (1) Public safety.

6 (2) Infrastructure, including water quality improvements,
7 that:

8 (A) impacts state park visitation; or

9 (B) is for the benefit of the state park, including the
10 protection of:

11 (i) the state park's natural resources; or

12 (ii) an adjacent community to the state park.



COMMITTEE REPORT

Mr. Speaker: Your Committee on Natural Resources, to which was referred House Bill 1204, has had the same under consideration and begs leave to report the same back to the House with the recommendation that said bill do pass.

(Reference is to HB 1204 as introduced.)

LINDAUER

Committee Vote: Yeas 12, Nays 0

COMMITTEE REPORT

Mr. Speaker: Your Committee on Ways and Means, to which was referred House Bill 1204, has had the same under consideration and begs leave to report the same back to the House with the recommendation that said bill do pass.

(Reference is to HB 1204 as printed January 14, 2026.)

THOMPSON

Committee Vote: Yeas 23, Nays 0

HOUSE MOTION

Mr. Speaker: I move that House Bill 1204 be amended to read as follows:

Page 3, delete lines 1 through 6, begin a new paragraph and insert:

"(g) The surcharge collected by the department and paid to the county treasurer must, as applicable, be used for one (1) or both of the following in accordance with an ordinance adopted under subsection (c):

(1) Public safety.

(2) Infrastructure, including water quality improvements, that is:

(A) impacted by tourism; or

(B) for the benefit of tourism."

(Reference is to HB 1204 as printed January 27, 2026.)

HALL

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COMMITTEE REPORT

Mr. President: The Senate Committee on Natural Resources, to which was referred House Bill No. 1204, has had the same under consideration and begs leave to report the same back to the Senate with the recommendation that said bill be AMENDED as follows:

Page 1, delete lines 1 through 6, begin a new paragraph and insert:

"SECTION 1. IC 14-8-2-87.9 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 87.9. "Fees", for purposes of IC 14-19-3-6, means entrance or admission fees that are paid in a county upon or after entering an Indiana state park or state recreation area located in the county."**

Page 3, delete lines 6 through 9, begin a new line block indented and insert:

"(2) Infrastructure, including water quality improvements, that:

(A) impacts state park visitation; or

(B) is for the benefit of the state park, including the protection of:

(i) the state park's natural resources; or

(ii) an adjacent community to the state park."

and when so amended that said bill do pass and be reassigned to the Senate Committee on Appropriations.

(Reference is to HB 1204 as reprinted January 30, 2026.)

GLICK, Chairperson

Committee Vote: Yeas 5, Nays 3.

